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# Non-Verbal Communication in Online Interactions and Legal Accountability

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## Introduction

Non-verbal communication has always been a crucial factor when interacting with others, but one of the significant limitations of our online interactions is the inability to have fully access to the additional context that non-verbal communication would provide, eventually causing inter-relational problems. The objective of this small thesis is to analyze the limitations that can be individuated and experienced in this field with modern digital tools and the issues this can cause even from a juridical point of view, presenting a specific case study.

## Section 1 - Non-Verbal Communication

Non-verbal communication include all those aspects of interaction that extend beyond words. Body language, facial expressions, eye contact, signals, gestures, silences and voice tones are all essential elements that complete the context of a conversation. This sphere complements the *logos* in its traditional meaning, containing words and discourse. Integrating these two spheres, we can have more clues to better analyze the environment, to express out intentions, and to subconsciously give a subjective interpretation of others' behavior. This ability is crucial even for other animals, and has always been in our ancient roots with a vital importance, as looking for signals helps in reaching agreements in the discourse, but also in being aware of our surroundings. Paying attention to our interlocutor's emotions hints us if and when to remain vigilant for potential threats. Moreover, humans, being social animals, rely on non-verbal actions and behaviors to strengthen social bonds, expressing in a more genuine way sentiments that may not be expressible through rational and controlled words, encouraging the development of empathy.

To evaluate the importance of this "silent" communication, we can take the example of sign language. It's a proper language, and there exist several variations of it based on geographical regions and time periods. However, the aspect that unifies all of them is the crucial part that non-verbality represents and that makes them a rich and detailed communicative method without the need for pronounced "words" in the common sense of the term. Even considering hand signs as a form of "word", it



is evident how other factors need to be present in order for the interaction to be well comprehensible: facial expressions, the speed of the signs, the position of the body, are all central aspects to complete the hand gestures with the proper meaning and "tone".

Losing a part of the context, when these signals are not observable, implies being more exposed to errors of evaluation regarding words, which can have more than one fixed meaning or can be used in a non-standard way. This can lead to misunderstandings and incorrect evaluation of emotions and intentions, undermining the establishment of relationships and trust among individuals, or even potentially weakening them.

## **Section 2 - Online Communication**

Online communication is becoming one of the principal ways to stay connected and an essential aspect of our lives. It allows us to keep in touch with loved ones and to meet new people, even those who are far away. Part of the reason why chat platforms, social media, and messaging apps have become so popular is that they enable us to share aspects of our lives and of ourselves more easily and instantly. This, at least seemingly, alleviates feelings of loneliness during moments of separation and helps reunite families despite physical distance.

However, this phenomenon also presents many negative aspects, united by the underlying loss of contextual information beyond spoken or written language, among the other issues. The "on-life" era introduces numerous new risks, and recent studies suggest it may also be weakening some communicative abilities due to the modes through which exchanges and interactions are carried on. When we are online, our perceptions are altered, and while this can be positive for shortening distances, it becomes destructive when, unaware of who is on the other side of the screen or unable to grasp certain aspects of their current psychophysical state, we lose part of the surrounding information and reduce the communicative quality. Gestural and non-verbal aspects cannot always be fully guaranteed on the web, being too complex and difficult to transmit instantly.

This is also one of the reasons why the phenomenon of online hatred seems so prevalent: misunderstandings, reduced inhibitions, and difficulties in developing empathy with someone you cannot see in front of you. Misinterpretations due to the

incorrect evaluations of tone and emotions of the other person make conflicts more likely to happen, favoring them over resolution.

Efforts have been made to mitigate these limitations by attempting to carry additional elements online beyond simple written text, which predominates in such interactions, through the introduction and use of tools like emojis, GIFs, or video calls. While these tools expand the communicative horizon, they do not entirely cover the gap, as they are unable to accurately replicate real-life exchanges and can sometimes be more frustrating or unclear to use.

For example, it has been observed that during the lockdown, those working via video calls often felt more tired because processing and grasping non-verbal hints is more challenging in a video format. People showed higher stress levels after online conversations compared to the in-person ones, due to the difficulty in managing different contexts and due to the reduced peripheral information. Even though conveyed through a webcam, these signs had to fit within the frame rectangle and often required to exaggerate the expressions to make them visible and recognizable, adding extra elements that needed conscious monitoring and attention.

## **Section 3 - The Megan Meier Case**

Megan Meier was a 13-year-old girl from the United States, who took her own life in 2006 due to a case of cyberbullying. Megan had struggled with depression, for which she was receiving treatment.

The situation began when Megan started an at first friendly relationship on MySpace with a boy named "Josh Evans". After some time, "Josh" began sending her hurtful and cruel messages that led the girl to her final action.

After her death, it was discovered that "Josh Evans" did not actually exist, because the account had been created by Lori Drew, one of Megan's neighbors and the mother of one of her friends, along with her daughter.

The case gained national media attention and raised significant issues regarding cyberbullying and legal responsibility for online behavior, after that Lori Drew, initially charged with various offenses, was acquitted of the most serious charges due to the non-existence of rules to regulate these cases at the time. Megan Meier's case led

to the enactment of stricter cyberbullying laws in several states across the United States.

The reason why I have briefly mentioned this case in this thesis is that Lori Drew described what she had done as a simple "joke", a way to find out from Megan what she thought of her daughter and the people around her. However, without knowing who she was really talking to, it was impossible for Megan to realize what was actually happening, just as it was impossible for Lori to see with her own eyes the effects her words were having on the girl. Although misunderstandings of this kind can also happen in real life (where it is also possible to lie about intentions, claiming it was just a prank), cases of fraud, defamation, and bullying online are more critical. This is not only because written words can be better weighed and organized compared to unpredictable and often uncontrollable reactions that could derail plans by provoking unforeseen responses, but also because, from a legal point of view, they are more difficult to evaluate. Mere intention is not sufficient for a conviction, but when this intention is not even clearly identifiable, as in other cases of online threats and defamations, what might be clearly interpretable as a joke in person can be perceived with extreme seriousness online, and vice versa, making digital evidence and traces not always as clear as they seem.

## Conclusions

Although steps forward are being made in developing tools to widen the communicative scope in chats, these will always have limitations. It is important to recognize that we are dealing with a different type of interaction compared to the traditional ones, and accurately reproducing reality remains a complex and likely unachievable challenge. This makes necessary a clear yet flexible regulation to adapt to even the most extreme cases, with the aim to mitigate the downsides and the flaws of new communication methods without preventing their development. Wherever possible, it is also crucial to keep educating end users about risks, responsibilities, and the unique dynamics of these digital social relationships, promoting clearer and healthier exchanges where possible. Finding a definitive solution to the problem is not possible due to its nature, which involves analyzing contextual elements subjectively rather than objectively (even in



normal settings, where individuals may not be aware of them, considering that much of gesture is subconscious). Can we truly hold someone accountable solely basing our judgement on what they have written or posted online? And how can we ensure the identity and genuine intentions of those who have done it? Therefore, it is a problem that will continue to manifest itself in various forms in the everyday life, both in legal and non-legal contexts, as in situations where there is a need to gather as much information as possible to find evidences (here it's been reported just a single case, but it can be evident on how crucial this may be in, for example, the fight against terrorism) or limiting misuse of platforms, conflicts arise with rights such as privacy and freedom of speech against censorship.